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ACT NO. 2 OF 2019

Land Survey (Amendment) Act, 2019

An Act to amend the Land Survey Act, 1980[1].

Enacted by the Parliament of Lesotho

Short title and commencement

1. This Act may be cited as the Land Survey (Amendment) Act, 2019 and shall come into operation on the date of its publication the Gazette.

Chief Surveyor and his duties

2. The principal law is amended in section 3 by deleting section 3(1) and substituting the following:

"**Office of the Chief Surveyor and his duties**

3. (1) There shall be a Chief Surveyor whose office shall be an office in the public service, who shall, be responsible to the Commissioner of Lands and Subject to this Act shall -

(a) supervise, direct and control all public surveys;

(b) examine all plans of surveys and authenticate such Surveys if satisfied that they have been carried out under this Act;

(c) take charge of, and preserve all, survey records;

(d) cancel or amend surveys found to be incorrect, outdated or inadequate;

(e) prepare, certify and issue at the request of any person upon payment of the pre-

scribed fees, copies of maps and documents held by him which are available to public;

(f) prepare and publicise official maps of Lesotho;

(g) co-ordinate and control all aerial photography of land in Lesotho including copyrights;

(h) chair the Land Surveyor's Board established under this Act;

(i) establish, develop and maintain spatial data infrastructure; and

(j) be responsible for establishment and maintenance of national control network system".

The conduct of surveys

3. The principal law is amended in section 14 by deleting subsection (2) and substituting the following:

"(2) The Government or a public officer shall not be liable for a defective survey, or any work relating to the survey performed by a licensed surveyor, even if the plan has been authenticated or approved in accordance with this Act or used to support any document of title to land or deed registered under any law.".

Land Surveyors Board

4. The principal law is amended by deleting section 4 and substituting the following:

"4. (1) There is established a board to be known as the Land Surveyors Board which shall be appointed by the Minister on the advice of the Commissioner of Land and shall consist of:

(a) the Chief Surveyor who shall be an ex-officio member and shall be the chairperson of the board;

(b) a representative from the Land Administration Authority;

(c) a representative of surveyors;

(d) a representative from the Ministry of Local Government and Chieftainship with legal background; and

(e) a representative from the Ministry of Education.

(2) A member of the board shall hold office for a period of 3 years and may be eligible for re-appointment of not more than 2 consecutive terms.

(3) Membership may be terminated through the following:

(a) resignation

(b) absence from 3 consecutive sittings without reasonable cause shown; and

(c) incapacity to perform functions of the office.

(4) The quorum shall be a simple majority of the members.

(5) The board shall sit quarterly and as and when need arises.".

Delegation of functions

5. The principal law is amended by deleting section 24 and substituting the following:

"24. The Chief Surveyor may, delegate his functions under this Act to a public officer.".

"Repeals

6. Land Survey (Amendment) Act No. 15 of 2012 is repealed.".

NOTE

1. Act No. 14 of 1980 as amended by Act No. 15 of 2012

GOVERNMENT NOTICE NO. 7 OF 2019

The Parliament of Lesotho

Statement of Objects and Reasons of the Land Survey (Amendment) Act, 2019

(Circulated by the Authority of the Minister responsible for local government and chieftainship affairs)

1. The Proposed reform

The Land Survey (Amendment) Bill 2019 proposes to re-establish/transfer the position of the Chief Surveyor and related land Survey and mapping functions from the Land Administration Authority (LAA) to the Public Service in order to observe the status quo ante as contained in the Land Survery Act, No. 14 of 1980. The Bill also introduces the new composition of the Land Survey Act, No. 14 of 1980. The Bill also introduces the new composition of the Land Survey Board which shall consists of Chief Surveyor as Chairperson, a representative from LAA, Surveyors, Ministry of Local Government and Chieftainship Affairs and Ministry of Education. The Bill further repeals the Land Survey (Amendment) Act No. 15 of 2012.

2. The Current Position

The position of the Chief Surveyor was transferred from the Public Service to the Land Administration Authority (LAA) by Land Survey (Amendment) Act No. 15 of 2012. This was done in realization that LAA was vested per Land Administration Authority Act 2010, with performance and control of survey functions in Lesotho.

The situation had rendered some of the survey functions in-operative. For instance, the surveying of sites to be allocated by the Local Authorities is a government function which cannot be undertaken while the Chief Surveyor is still part of the Land Administration Authority. In relation to the Land Survey Board, the current composition consists Chief Surveyor and three other members who are surveyors.